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Counterfactual Partial Judgment Under Supported Certification

Filed: February 4, 2026 Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED

United States District Court for the Northern District of West Virginia

Proceeding: Separate judgment entered after an express Rule 54(b) determination.

**Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian
Silt Holdings, LLC, Defendants.**

The Court entered a memorandum opinion and order on January 12, 2026 granting Copper Kestrel Logistics, LLC summary judgment on Count I of Asterglen Freight Software, Inc.'s Complaint. That ruling dismissed the contract claim with prejudice. On February 4, 2026, after considering the parties' binding stipulation and the changed relationship of the claims, the Court expressly determined that there is no just reason for delay and directed entry of judgment under Federal Rule of Civil Procedure 54(b).

Accordingly, FINAL JUDGMENT is entered in favor of Copper Kestrel Logistics, LLC and against Asterglen Freight Software, Inc. on Count I. Asterglen takes nothing on its \$480,000 contract claim against Copper Kestrel. Count I is dismissed with prejudice.

This judgment is limited to Count I and is set out separately from the supporting opinion and certification order.

Scope and Continuing Matters

Copper Kestrel's former \$120,000 amended counterclaim has been dismissed with prejudice by stipulation. It is not reserved for later decision, cannot be asserted as a setoff against this judgment, and supplies no remaining claim between Asterglen and Copper Kestrel in this action.

Count II remains pending only against Meridian Silt Holdings, LLC and only as narrowed by the January 28 stipulation. The surviving allegation concerns Meridian's independent conduct after the July 22, 2024 termination communication and seeks no damages included in Count I. Nothing in this judgment adjudicates Meridian's liability, defenses, or the capped distinct damages request.

The Court's February 4 certification order contains the express determination that there is no just reason for delay and the case-specific findings supporting that determination. This separate judgment implements the direction to enter final judgment; it does not replace, enlarge, or omit the certification findings.

The Clerk shall enter this judgment on Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED and maintain narrowed Count II as the only open claim. Costs associated with Count I may be addressed under the governing rules after appellate proceedings, if any. No automatic stay is imposed on the continuing district matter.

Entered February 4, 2026.

Clerk of Court Authorized clerk designation